

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 22-002

**Amendment to Title 5, Chapter 1, Article A, Section 5-101.5
of the Chickasaw Nation Code
(Court Administrative Provisions)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted an oath of allegiance for members of the Chickasaw Bar Association in conjunction with the Supreme Court, and

WHEREAS, the Tribal Legislature desires to reformat the section of the Chickasaw Nation Code that provides such oath.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby deletes Title 5, Chapter 1, Article A, Section 5-101.5 of the Chickasaw Nation Code and approves and adopts the following to be codified in its place:

“SECTION 5-101.5

CHICKASAW BAR ASSOCIATION.

A. Any person shall be authorized to practice as an attorney and counselor at law in any Court of the Chickasaw Nation who has been admitted to the Bar of the Chickasaw Nation. The Bar of the Chickasaw Nation shall be open to any person who is an attorney at law and is admitted to practice before a court and is a member in good standing of such Bar.

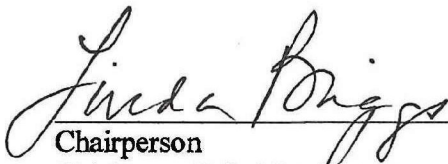
B. All persons authorized under this Section shall become members of the Chickasaw Bar Association and their names shall be added to the roll of attorneys for the Chickasaw Supreme Court upon paying an annual fifty dollar (\$50) membership fee, and such other additional fees as the Supreme Court may assess, to the Clerk of the Court and taking and signing the following oath before the Clerk of the Court:

“You do solemnly swear that you will support, protect and defend the Constitution of the United States and the Constitution of the Chickasaw Nation; that you will do no falsehood or consent that any be done in court, and if you know of any you will give knowledge thereof to the Judges of the Court, or some one of them, that it may be reformed; you will not wittingly, willingly or knowingly promote, sue or procure to be sued, any false or

unlawful suit, or give aid or consent to the same; you will delay no man for lucre or malice, but will act in the office of attorney in this Court according to your best learning and discretion, with all good fidelity as well to the Court as to your client, so help you God."

C. All fees collected from Chickasaw Bar Association members shall be held by the Supreme Court and managed and expended for the membership of the Chickasaw Bar Association."

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on November 19, 2004, by a vote of 13 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: **NOV 20 2004**

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Explanation: The Chickasaw Tribal Legislature has previously enacted an oath of allegiance for members of the Chickasaw Bar Association in conjunction with the Supreme Court. This resolution changes the format of the section of the Chickasaw Nation Code that provides such oath but does not make any amendments to the language.

Requested By: Tim Colbert, Chairman
Court Development Ad Hoc Committee

Presented By: Tim Colbert, Chairman
Court Development Ad Hoc Committee